

NAPCS Unionization Research — State — Charter School Overview

Kansas — Kansas Department of Labor Jurisdiction — 2026-06-06

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Section 1: State Overview

State	Kansas
Labor Board	Kansas Department of Labor — Labor Relations Division (PNA/PERB)
Governing Law	K.S.A. 72-4206 et seq. (Charter Schools Act) K.S.A. 72-2218 et seq. (Professional Negotiations Act) Charter schools operate within the school district structure. Teachers at charter schools are district employees subject to the district PNA agreement unless the charter document explicitly specifies an opt-out.
Federal NLRB Jurisdiction	Kansas Department of Labor — Labor Relations Division (PNA/PERB) has exclusive jurisdiction. Federal NLRB does not apply.
Right-to-Work	Right-to-Work State — K.S.A. 44-831 (Kansas Labor-Management Relations Act, Article 8) (Kansas has been right-to-work since 1958. Applies to any NLRB private employer organizing — though KS charter schools are public employers under the PNA (K.S.A. 72-2218 et seq.), RTW principles do not apply in the same way to PNA-covered employees. Under PNA, no employee can be required to join a professional association.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — No card-check equivalent under PNA. Recognition through petition and election process administered by KDOL-LR Secretary.
Registry Sweep	COMPLETE — 2026-06-06 — 8 charter schools searched
Research Window	June 2026

Section 2: Charter School Landscape

Total charter schools in Kansas: 8 (NCES CCD 2023-24 (8 KS charter schools); KSDE directory; PublicSchoolReview 2026; U.S. News; Niche. All 8 confirmed open and operating.). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
DEPENDENT	8	100%	All 8 KS charter schools presumptively covered by district PNA agreement per K.S.A. 72-4207. Waiver verification open for all 8.
CONFIRMED INDEPENDENT	0	0%	No independently organized KS charter schools found.

Charter School Enrollment

Total Charter Enrollment	2,347 students — 0.5% of state K–12 enrollment (481,626 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	1,159 students in network-affiliated schools — 49.4% of total charter enrollment
Students in Organized Charter Schools	2,443 students (104.1% of charter enrollment)
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures

from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses [†]	Organized in State	Total Enrollment
Stride Inc.	Network‡	1	—	—	1,159
TOTAL — All CMO/EMO Schools in Kansas		1		—	1,159
of which organized				—	—

Total enrollment shown is the combined enrollment of all CMO/EMO network schools in Kansas. Organized network schools: 0 organized schools in network-affiliated charters.

[†] National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

[‡] Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

1 network (type unclassified). Approximately 7 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Charter School Overview

Findings are based on research as of 2026-06-06.

1: Legal & Jurisdictional Framework

K.S.A. 72-4206 et seq. (Charter Schools Act) K.S.A. 72-2218 et seq. (Professional Negotiations Act) Charter schools operate within the school district structure. Teachers at charter schools are district employees subject to the district PNA agreement unless the charter document explicitly specifies an opt-out. Kansas is a right-to-work state (K.S.A. 44-831 (Kansas Labor-Management Relations Act, Article 8)). Kansas Department of Labor — Labor Relations Division (PNA/PERB) has exclusive jurisdiction. Federal NLRB does not apply to charter schools in Kansas. Secret ballot NLRB election is the required organizing pathway. Card-check is not available.

2: Charter School Structure

Kansas operates 8 open-enrollment charter schools, enrolling approximately 2,347 students. 1 charter management organizations and education management organizations operate in Kansas. The largest networks by campus count are Stride Inc. (1 campuses in state). Approximately 7 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Legislative Context

Negotiations between Kansas boards of education and professional employees are governed by the Professional Negotiations Act, K.S.A. 72-2218 et seq. Under K.S.A. 72-2219, professional employees may form, join, or assist professional employees' organizations and participate in negotiations through representatives of their own choosing. K.S.A. 72-2228 requires that, once an organization is recognized, the board of education and that organization enter into professional negotiations on the request of either party prior to the issuance or renewal of annual teacher contracts; the same section states that strikes are not authorized. Kansas charter schools are established under K.S.A. 72-4206 et seq. and operate under the authority of a local board of education. Where charter school staff are employed by the district, the district's negotiated agreement — for example, the agreement between Kansas City, Kansas Public Schools and its recognized professional employees' organization — is the operative instrument.

Section 6: Contract & CBA Access Registry

Kansas Department of Labor — Labor Relations Division (PNA/PERB) public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
Lawrence Virtual School (Lawrence USD 497)	Lawrence Education Association (LEA) — KNEA/NEA	CONFIRMED 2026-27 agreement approved by the board of education May 26, 2026	Contract: Board approval coverage (Lawrence Times)
Hope Street Charter Academy (Topeka USD 501)	National Education Association-Topeka (NEA-T) — KNEA/NEA	CONFIRMED Professional Agreement effective August 1, 2025 through July 31, 2026	Contract: Full agreement (PDF)
Insight School of Kansas (Spring Hill USD 230)	Spring Hill Education Association	CONFIRMED 2026-27 agreement ratified 201-1; board approved June 8, 2026	Contract: Board meeting summary (district)
Smoky Valley Virtual Charter School (Smoky Valley USD 400)	Recognized professional employees' organization — name not confirmed in public sources	CONFIRMED 2025-26 negotiated agreement ratified by the board of education (6-0), July 2025	Contract: Board ratification coverage
Caney Valley Charter Academy (Caney Valley USD 436)	Recognized professional employees' organization — name not confirmed in public sources	CONFIRMED 2021-22 negotiated agreement (most recent located)	Contract: Full agreement (PDF)
Yoder Charter Elementary School (Haven USD 312)	Recognized professional employees' organization — not located	NONE FOUND	Request: Records request portal
Hugoton Learning Academy (Hugoton USD 210)	Recognized professional employees' organization — not located	NONE FOUND	District records request
Service Valley Charter Academy (Oswego USD 504)	Recognized professional employees' organization — not located	NONE FOUND	Request: Records request portal

